

Court No. - 42

Case :- CRIMINAL MISC. WRIT PETITION No. - 18209 of 2014

Petitioner :- Smt. Chanda Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rahul Srivastava

Counsel for Respondent :- Govt. Advocate

Hon'ble Ravindra Singh, J.

Hon'ble Mohd. Tahir, J.

As prayed, put up on 16.10.2014.

In the meantime, learned Counsel for the petitioner shall serve notice to the counsel appearing on behalf of the Power Corporation of U.P.

Order Date :- 14.10.2014

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Court No. - 42

Case :- CRIMINAL MISC. WRIT PETITION No. - 18209 of 2014

Petitioner :- Smt. Chanda Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rahul Srivastava

Counsel for Respondent :- Govt.Advocate

Hon'ble Ravindra Singh,J.

Hon'ble Mohd. Tahir,J.

Heard Sri Rahul Srivastava, learned counsel for the petitioner, learned A.G.A. for the State of U.P. and Sri Mahboob Alam, learned counsel for Power Corporation.

Learned counsel for the petitioner files impleadment application.

Learned counsel appearing for Power Corporation prays for and is granted two weeks' time to file counter affidavit.

List on 10.11.2014.

Till then, no coercive measure has been taken against the petitioner in the above mentioned case.

Order Date :- 16.10.2014

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Court No. - 35

Case :- CRIMINAL MISC. WRIT PETITION No. - 18209 of 2014

Petitioner :- Smt. Chanda Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rahul Srivastava

Counsel for Respondent :- Govt.Advocate

Hon'ble V.K. Shukla,J.

Hon'ble Virendra Vikram Singh,J.

List this case in the next cause list, in order to enable learned counsel for the petitioner to come to the Court alongwith book in question.

Order Date :- 10.11.2014

T.S.

Court No. - 39

Case :- CRIMINAL MISC. WRIT PETITION No. - 18209 of 2014

Petitioner :- Smt. Chanda Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rahul Srivastava

Counsel for Respondent :- Govt. Advocate

Hon'ble V.K. Shukla, J.

Hon'ble Mohd. Tahir, J.

Heard learned counsel for the petitioner and learned AGA for the State.

Petitioner has approached this Court with a request to quash the FIR dated 27.08.2014 registered as Case Crime No. 561 of 2014 under Section 135-1(c) Indian Electricity Act, 2003 at police station Civil Lines, District Allahabad.

This Court has the occasion to peruse the FIR and the FIR in question does disclose a cognizable offence, in view of this, there is no occasion for this Court to quash the FIR, as has been prayed on behalf of petitioner, as such, prayer made on the said score is refused by this Court.

Learned counsel for the petitioner contended that the offence in question, as has been alleged to have been committed by the petitioner, is under Section 135-1(c) of the Electricity Act and for the same, even if the charges are found to be proved sentence of more than 7 years cannot be awarded and, in view of this, mechanically arrest should not be effectuated by the police personnel. Learned counsel for the petitioner next contended that the offence in question, as has been alleged to have been committed by the petitioner, is compoundable also.

The fact of the matter is that till date arrest has not been effectuated and this is mere apprehension of the petitioner that he would be arrested in breach of provisions as contained under Section 41 (1) (b) read with Section 41-A of the Cr.P.C. Once there is statutory provision provided for then it is always expected that the said provisions would be adhered to and in case there is any violation of the same, complaint can also be made before the Magistrate concerned to remedy the situation and if petitioner's offence is compoundable, he may seek his remedy, as provided, under the provisions of Electricity Supply Code, 2005 as well as under Section 152 of Electricity Act, 2003.

In view of the above, it is hereby directed that in case arrest of petitioner is to be effectuated and the offence, in which he is wanted, will not entail sentence of more than 7 years then in that event concerned police personnel should deal with the matter in compliance of the provisions as contained under Section 41 (1) (b) read with Section 41-A of the Cr.P.C.

Writ petition stands disposed of.

Order Date :- 21.1.2015

A. Pandey